

Jyoshnarani Mallik vs Jnanendra Samal on 5 February, 2025

Bench: B. P. Routray, Chittaranjan Dash

IN THE HIGH COURT OF ORISSA AT CUTTACK
MATA No. 3 of 2024

Jyoshnarani Mallik

....

Appellant

Mr. S.K. Patnaik, Advocate

-versus-

Jnanendra Samal

....

Respondent

Mr. P.K. Mohanty, Advocate

CORAM:

JUSTICE B. P. ROUTRAY

JUSTICE CHITTARANJAN DASH

ORDER

05.02.2025 Order No.

05. 1. Heard learned counsel for the parties.

2. The impugned judgment of the learned Judge, Family Court, Cuttack dated 20th November 2023 granting divorce by dissolving the marriage and grant of permanent alimony is assailed in present appeal by the wife.

3. From the submissions of both parties it reveals that the parties are staying separately since 2015, and daughter born to the couple who is minor is with the mother.

4. The learned Judge, Family Court has granted divorce on the ground of mental cruelty. Learned counsel appearing for the husband-Respondent clearly expresses that he is not ready to accept the wife back to the matrimonial life. In view of the above we agree with the findings of the learned Judge, Family Court regarding the fact that no further union of the marital life is possible between the parties.

5. Thus, considering from all the angles appearing in the case, we confirmed the decree of divorce granted by the learned Judge, Family Court by dissolving the marriage between the parties.

6. On the question of permanent alimony, it is seen that despite the wife is staying along with the minor daughter, no separate alimony has been granted in her favour in contravention to the provision under Section 26 of the Hindu Marriage Act.

7. It is submitted that the minor daughter is presently aged about 14 years and is prosecuting her studies and staying in her maternal grandparents house along with her mother. Admittedly, the husband has a good source of income and he is running a Nursing Home at Cuttack town. Taking note of the age of the minor daughter, her studies and marriage prospect we feel it proper to grant a

sum of Rs.15 Lakhs to the minor daughter to be payable by the husband-Respondent.

8. Accordingly, the Appeal is disposed of confirming the decree of divorce and the alimony granted in favour of the wife stated to have already been paid. In addition to the same, the husband-Respondent is directed to pay a sum of Rs.15 Lakhs towards maintenance of the minor daughter, which shall be paid within a period of two months from today, failing which, the parties are at liberty to proceed against the husband-Respondent in accordance with law. The sum directed to be paid in favour of the minor daughter shall be kept in a fixed deposit in any Nationalized Bank for a period of six years and subject to the condition that quarterly interest therefrom shall be payable to the minor daughter to be drawn through the mother guardian.

(B.P. Routray) Judge (Chittaranjan Dash) Judge AKPradhan/Bijay Location: HIGH COURT OF ORISSA Date: 06-Feb-2025 15:30:25